

which tend directly to injure a person in respect to their profession, trade or business constitute slander *per se*.

Defendants assert the statute of limitations bars plaintiff's claim. (Code Civ. Proc. §§ 430.10, subd. (e), 340(c).) To sustain a demurrer on this ground, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint *might* be time barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, the FAC adequately alleges republication within a year prior to the filing of the complaint. It does not appear clearly and affirmatively from the face of the complaint that the claim is barred.

Based on the foregoing, the court overrules defendants' demurrer to the seventh cause of action for defamation. Defendants shall file their answer by May 8, 2026.

16. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon Glen

Demurrer to the Complaint

Defendants Shannon Glen Cavanaugh aka S. Glen Cavanaugh and Cavalry Automotive Ventures, Inc. demur to the first and third causes of action for breach of contract and fraud, respectively, for failure to allege facts sufficient to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the motion.

Defendants' and plaintiff's request the court take judicial notice of the complaint filed September 16, 2025 is granted.

Plaintiff's objections to portions of the Jensen declaration are overruled.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant Cavanaugh contends the breach of contract claim fails because the complaint does not adequately allege facts supporting plaintiff's performance or defendant's breach. A careful review of the complaint and Exhibit 1 thereto, however, reveals the complaint sufficiently alleges facts supporting the existence of a contract between the parties, plaintiff's performance or excuse for nonperformance, defendant's breach, and damages. The demurrer is overruled on this basis.

Defendants contend the complaint falls short of the particularity required for fraud claims. Fraud must be pleaded with sufficient particularity that shows “how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.) Here, a careful review of the complaint reveals it sufficiently alleges all elements of a fraud claim and meets the heightened pleading standard. The demurrer is overruled on this basis.

Defendants also contend the fraud claim fails because it is prohibited by the economic loss rule. However, the economic loss rule does not prohibit a fraud claim “based on conduct committed during the course of a contractual relationship” and fraud claims involve “different policy concerns than” the types of claims that are prohibited by the economic loss rule. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43, discussing *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 991.) The demurrer is overruled on this basis.

Based on the foregoing, the demurrer is overruled in its entirety. Defendants shall file and serve a responsive pleading by May 8, 2026.

17. S-CV-0056325 Tadros, Michael v. Roseville Point Health & Wellness

Moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration

Defendant’s request for judicial notice is granted.

Defendant Roseville Point Health and Wellness Center, LLC moves to compel arbitration of claims by plaintiff Michael Tadros, by and through his guardian ad litem, Mary Manoli, individually, and to stay the action pending the completion of arbitration. Defendant contends plaintiff voluntarily executed a binding agreement to arbitrate all claims against defendant.

Pursuant to Code of Civil Procedure section 1281.2, a trial court shall order arbitration of a controversy if an agreement to arbitrate the controversy exists, with certain exceptions inapplicable here. California has a strong public policy in favor of arbitration, but “a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.) *Gordon v. Atria Management Co., LLC* (2021) 70 Cal.App.5th 1020, 1026.